

Bihar Electricity Regulatory Commission (Rooftop Solar Grid Interactive Systems Based on Net Metering) Regulations, 2015

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Bihar Electricity Regulatory Commission (Rooftop Solar Grid Interactive Systems Based on Net Metering) Regulations, 2015

Rule

BIHAR-ELECTRICITY-REGULATORY-COMMISSION-ROOFTOP-SOLAR-GRID-INTERACTIVE-SYSTEMS-BASED-ON-NET-METERING-REGULATIONS-2015 of 2015

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Bihar Electricity Regulatory Commission (Rooftop Solar Grid Interactive Systems Based on Net Metering) Regulations, 2015

Published vide Notification No. BERC-SMP No.-5/2015-5, dated 06.07.2015

Last Updated 7th February, 2020

No. BERC-SMP No.-5/2015-5. - In exercise of powers conferred under section 61,66 86(1)(e) and 181 of the Electricity

Act, 2003 (Act 36 of 2003) and all other powers enabling it in this behalf, and after previous publication, the Bihar Electricity Regular makes the following regulations for the grid connected Solar Rooftop Photovoltaic system:

1.

Short title, extent and commencement.

- 1.1 These regulations may be called the Bihar Electricity Regulatory Commission (Rooftop Solar Grid Interactive Systems Based on Net Metering) Regulations, 2015

1.2

The Regulations extend to the whole of the State of Bihar.

1.3

These regulations shall come into force from the date of their notification in the Official Gazette of Government of Bihar.

2.

Definitions and Interpretations.

- 2.1 In these Regulations, unless the context otherwise requires:

(a)

"Act" means the Electricity Act, 2003 (36 of 2003) and subsequent amendments thereof;

(b)

"Agreement licensee and the consumer;

(c)

"Authority section (1) of Section 70 of the Act;

(d)

"Billing cycle or billing period electricity bills as specified by the Commission, are prepared for different categories of consumers by the licensee;

(e)

"Commission constituted under the Act;

(f)

"Consumer" means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are, for the time being, connected for the purpose of receiving electricity with the works of a distribution licensee, the Government or such other person, as the case may be;

(g)

"Contracted load" or "Contract demand" means the maximum demand in kW, kVA or BHP, agreed to be supplied by the licensee and indicated in the agreement executed between the licensee and the consumer;

(h)

"Distribution licensee" or "Licensee" means a person granted a license under Section 14 of the Act authorizing him to operate and maintain a distribution system for supplying electricity to the consumers in his area of supply;

(i)

"Electricity Supply Code" means the Bihar Electricity Supply Code 2007 specified by the Commission under section 50 of the Act and subsequent amendments thereof;

(j)

"Eligible consumer" means a consumer of electricity in the area of supply of the distribution licensee, who uses a rooftop solar system installed in the consumer premises, to offset part or all of the consumer's own electrical requirements, given that such systems can be self-owned or third party owned;

(k)

"Financial year" or "Year" means the period beginning from first of April in an English calendar year and ending with the thirty first of the March of the next year;

(l)

"Government" means the Government of Bihar;

(m)

"Inter connection point" means the interface of solar power generation facility system with the network of distribution licensee;

(n)

"Invoice" means either a Monthly Bill / Supplementary Bill or a Monthly Invoice/ Supplementary Invoice raised by the distribution licensee;

(o)

"kWp" means kilo Watt peak;

(p)

"Net meter" means an appropriate energy meter capable of recording both import and export of electricity or a pair of meters one each for recording the import and export of electricity as the case may be; which shall be an integral part of the net metering system;

(q)

"Obligated entity" means the entity mandated under clause (e) of subsection (1) of section 86 of the Act to fulfil the renewable purchase obligation and identified under Bihar Electricity Regulatory Commission(RPO its Compliance and REC Framework Implementation) Regulations, 2010 and subsequent amendments thereof;

(r)

"Premises" means rooftops or/and elevated areas on the land, building or any other structure or part or combination thereof in respect of which separate meter or metering arrangements have been made by the licensee for supply of electricity;

(s)

"Rooftop solar system" means the solar photovoltaic power system installed on the rooftops or any other structure in consumer premises that uses sunlight for direct conversion into electricity through photovoltaic technology;

(t)

"Renewable Energy Certificate (REC)" means the certificate issued in accordance with the procedures approved by the Central Electricity Regulatory Commission;

(u)

"Settlement period" means the period beginning from first of April in an English calendar year and ending with the thirty first of the March of the next year;

(v)

"Solar meter" means a unidirectional energy meter installed as an integral part of the net metering system, at the point at which the electricity generated by solar energy system is delivered to the main panel of the eligible consumer;

(w)

"Tariff order" in respect of a licensee means the most recent order issued by the Commission for that licensee indicating the rates to be charged by the licensee from various categories of consumers for supply of electrical energy and services and its validity has not expired.

2.2

All other words and expressions used in these Regulations although not specifically defined herein above, but defined in the Act, shall have the meaning assigned to them in the Act. The other words and expressions used herein but not specifically defined in these Regulations or in the Act but defined under any law passed by the Parliament applicable to the electricity industry in the State shall have the meaning assigned to them in such law.

3.

Scope and Application.

- 3.1 These Regulations shall apply to the distribution licensee and consumers of electricity of distribution licensee of the State of Bihar.

3.2

The eligible consumer may install the rooftop solar system under net metering arrangement which,

(a)

shall be within the permissible rated capacity as defined under these Regulations.

(b)

shall be located in the consumer premises.

(c)

shall interconnect and operate safely in parallel with the distribution licensee network.

3.3

The capacity of the solar energy system to be installed at the premises of any eligible consumer under these

Regulations shall not be less than one KWp and shall not exceed one MWp. These regulations do not preclude the right of State Government to undertake rooftop solar projects above 1 MWp capacity through alternative mechanisms.

4.

General Principles.

- 4.1 The distribution licensee shall offer the provision of net metering arrangement to the consumer, who intends to install grid connected rooftop solar system, in its area of supply on non-discriminatory and first come first serve basis.

Provided that the distribution licensee shall offer the provision of net metering to the consumer for the target capacity as specified under these Regulations;

Provided further that the consumer is eligible to install the grid connected rooftop solar system of the rated capacity as specified under these Regulations;

Provided further that the interconnection of such system with the grid is undertaken as per technical standards specified by the Central Electricity Authority.

5.

Capacity Targets for Distribution Licensee.

- 5.1 The distribution licensee shall provide net metering arrangement to eligible consumers as long as the total capacity (in MW) does not exceed the target capacity determined by the Commission; Provided a maximum cumulative capacity of 10MW shall be allowed to eligible consumers under net metering, on yearly basis, in the area of supply of the distribution licensee;

Provided that the cumulative capacity to be allowed at a particular distribution transformer shall not exceed 15% of the capacity of the distribution transformer;

5.2

The distribution licensee shall update distribution transformer level capacity available for connecting rooftop solar systems under net metering arrangement on yearly basis and shall provide the information on its website as well as to the Commission.

6.

Eligible Consumer and Individual Project Capacity.

- 6.1 All eligible consumers of electricity in the area of supply of the distribution licensee can participate in the solar rooftop net metering arrangement (reference to sub clause 2.1(j) of these Regulations).

6.2

The maximum rooftop solar system capacity to be installed at any eligible consumer premises shall be governed by the eligibility of interconnection with the grid for that eligible consumer. The maximum capacity of an individual rooftop PV system would be equal to the sanctioned load of the consumer. The installation of Net metered rooftop solar systems on consumer premises will utilize the same service line and installation for injection of excess power into the grid, which is currently being used by the consumer for drawls of power from the distribution licensee. Provided that the maximum installed capacity shall not exceed 1MW.

7.

Interconnection with the Grid.

- 7.1 The interconnection of the rooftop solar system with the network of the distribution licensee shall conform to the technical specifications, standards and provisions as provided in the Central Electricity Authority (technical Standards for connectivity of the Distributed Generation resources) Regulations, 2013 as amended from time to time.

The distribution Licensee shall also ensure that interconnection of Rooftop Solar power system with the distribution system of the Licensee conforms to the relevant provisions of the Central Electricity Authority (Measures related to Safety and Electric Supply) Regulations, 2010 as amended from time to time.

The Net meter and solar meter installed should conform to the standards, specifications and accuracy class as provided in the Central Electricity Authority (Installation and operation of Meters) Regulations, 2006, as amended from time to time and are installed in such a way that they are accessible for reading.

7.2

The Rooftop Solar power producer may install grid interactive Solar power system with or without battery backup.

Provided that if the Solar Energy Generator, prefers connectivity with battery backup (full load backup/partial load backup), in all such cases the inverter shall have separate backup wiring to prevent the battery/Solar power to flow into the grid in the absence of grid supply and manual isolation switch shall also be provided.

7.3

The Solar power producer shall be responsible for safe operation, maintenance and rectification of any defect of the solar Energy System up to the point of Net Meter beyond which the responsibility of safe operation & maintenance shall rest with the Distribution Licensee.

7.4

The Distribution licensee shall have the right to disconnect the Solar Energy System at any time in the event of possible threat/damage to its distribution system,

8.

Energy Accounting and Settlement.

- 8.1 For each billing period, the licensee shall show the quantum of injected electricity by eligible consumer in the billing period, supplied electricity by distribution licensee in the billing period, net billed electricity for payment by the consumer for that billing period and net carried over electricity to the next billing period separately;

Provided that in the event the electricity injected exceeds the electricity supplied during the billing period, such excess injected electricity shall be carried forward to next billing period as electricity credit and may be utilized to net electricity injected or consumed in future billing periods;

Provided further that in the event the electricity supplied by the distribution licensee during any billing period exceeds the electricity generated by the eligible consumer's rooftop solar system, the distribution licensee shall raise invoice for the net electricity consumption after taking into account any electricity credit balance remaining from previous billing periods; The net energy imported has to be billed by the distribution licensee as per tariff in force applicable to that category of consumers.

Provided, in case the eligible customer is under the ambit of time of day tariff, as determined by the Commission from time to time, the electricity consumption in any time block (e.g., peak hours, off-peak hours, etc.) shall be first compensated with the electricity generation in the same time block. Any cumulate excess generation over consumption in any other time block in a billing cycle shall be accounted as if the excess generation occurred during the off-peak time block.

Provided also that the excess electricity measured in kilo-watt hour may only be utilized to offset the consumption measured in kilo-watt hour and may not be utilized to compensate any other fee and charges imposed by the distribution licensee as per the instructions of Bihar Electricity Regulatory Commission Provided also that the distribution licensee in addition to consumer tariff shall be eligible to raise invoice for any other charges as allowed by the Bihar Electricity Regulatory Commission.

8.2

The electricity generated by the rooftop solar system of an eligible consumer shall not be more than 90% of the electricity consumption by the eligible consumer at the end of the settlement period.

Provided that such injection of the above mentioned eligible consumer shall be settled only as per net metering arrangement at the end of each settlement period;

Provided further that in the event the electricity generated exceeds 90% of the electricity consumed at the end of the settlement period, no payment shall be made by the distribution licensee and shall not be carried forward to next settlement period and the same shall be treated as unwanted/ inadvertent injection. Provided also that at the beginning of each settlement period, cumulative carried over injected electricity will be reset to zero.

However, if net electricity injected in the month of March remains unadjusted, it may be allowed a carry forward for the next billing month.

8.3

In case of any dispute in billing it would be settled by the consumer grievance redressal forum and if issue still remains unresolved shall be settled by the Bihar Electricity Regulatory Commission following appropriate procedure.

9.

Solar Renewable Purchase Obligation.

- The quantum of electricity consumed by eligible consumer, who is not defined as Obligated entity, from the rooftop solar system under net metering arrangement shall qualify towards compliance of Solar Renewable Purchase Obligation (Solar RPO) for the distribution licensee.

10.

Applicability of Other Charges.

- The rooftop solar system under net metering arrangement, whether self-owned or third party owned installed on eligible consumer premises, shall be exempted from banking and wheeling charges and cross subsidy surcharge. Eligible consumer availing net metering facility cannot avail banking facility.

Provided that banking shall be as per the BERC (Terms and conditions for determination of Tariff for solar energy sources) (3rd amendment) Regulations, 2014.

11.

Eligibility to Participate under Renewable Energy Certificate Mechanism.

- The issuance of renewable energy certificate shall be as per the eligibility criteria specified under Central Electricity Regulatory Commission (Terms and Conditions for recognition and issuance of Renewable Energy Certificate for Renewable Energy Generation) Regulations, 2010 and subsequent amendments thereof;

12.

Metering Arrangement.

- 12.1 The metering system shall be as per the provisions of CEA (Installation & operation of meters) Regulations, 2006, CEA (Measures relating to Safety and electricity supply) Regulations, 2010 and CEA(technical standards for Connectivity of the distributed generation resources), Regulations, 2013 as amended from time to time and in compliance with the norms fixed by BERC/CERC from time to time.

12.2

The Net Meter shall be installed at the interconnection point of the eligible consumer with the network of distribution licensee. The solar meter shall be installed at the delivery point of the solar energy system to measure the solar energy generated. The licensee shall provide meters as per provision in Bihar Electricity Supply Code, 2007.

12.3

Check meters shall be mandatory for rooftop solar systems having capacity more than 20 kW. For installations size of less than and equal to 20 kW, the solar Check meters would be optional.

12.4

The Meter shall be tested, installed and sealed in accordance with the provisions of CEA (Installation and operation of Meters) Regulations, 2006 as amended from time to time and provisions under Bihar Electricity Supply Code, 2007. It shall be jointly inspected and sealed by the licensee on behalf of both the parties. It shall be tested by the licensee and installed in presence of consumer and the licensee with due acknowledgement.

Provided that the eligible consumer shall follow the metering specifications, provisions for placement of meter as developed by the distribution licensee from time to time and as per the Bihar Electricity Supply Code, 2007; Provided further that in case the eligible consumer is under the ambit of time of day tariff, meters compliant of recording time of day consumption/generation shall be employed.

12.5

The meter reading, both net meter and solar meter shall be taken by the distribution licensee and shall form the basis of commercial settlement. The copy of the meter reading statement shall be handed over to consumer as soon as meter reading is taken.

13.

Penalty or Compensation.

- In case of failure of net metering system, the provisions of penalty or compensation shall be as per the provisions of the standard of performance regulations for distribution licensee.

14.

Power to give Directions.

- The Commission may from time to time issue such directions and orders as considered appropriate for the implementation of these Regulations

15.

Power to Relax.

- The Commission may by general or special order, for reasons to be recorded in writing, and after giving an opportunity of hearing to the parties likely to be affected may relax any of the provisions of these Regulations on its own motion or on an application made before it by an interested person

16.

Power to Amend.

- The Commission may from time to time add, vary, alter, suspend, modify, amend or repeal any provisions of these Regulations.

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